Alabama Rules of Appellate Procedure

Rule 45B.

Scope of review in cases other than death cases.

In those criminal cases in which the death penalty has not been imposed, the Court of Criminal Appeals shall not be obligated to consider questions or issues not presented in briefs on appeal.

[Adopted 10-5-81, eff. 1-1-82; Amended 6-20-83.]

Court Comment

The amendment of June 20, 1983, was made so that this rule will agree with the holding in *Hoppins v. State*, 451 So.2d 365 (Ala.1983).